

MATERIAL TRANSFER AGREEMENT

THIS AGREEMENT is made on **(date)** BETWEEN the Parties identified below) each a “Party” and together the “Parties”), and shall be read together with Appendices A, B and C, which form an integral part of this Agreement.

PROVIDER	RECIPIENT
Full legal name:	Full legal name:
Institution/Address:	Institution/Address:
Contact person:	Contact person:
Tel / Email:	Tel / Email:
PRINCIPAL INVESTIGATOR / RESEARCHER)Recipient side, acknowledging party, not a signatory party to this Agreement)	
Name / Institution / Email:	

RECITALS. The PROVIDER has developed, collected, and/or holds the right to distribute the materials described in Appendix A)the “Materials”). The RECIPIENT wishes to obtain the Materials solely for the Research Programme described in Appendix B and agrees to comply with the terms below as a condition of receiving them.

1. DEFINITIONS

- 1.1 **“Materials”** means the Original Material described in Appendix A, together with any Progeny, Unmodified Derivatives, and the Original Material contained in any Modifications.
- 1.2 **“Original Material”** means the specific tangible material(s) listed in Appendix A supplied by the PROVIDER, including any accompanying know-how reasonably necessary to use it safely and for its intended purpose.
- 1.3 **“Progeny”** means unmodified descendants of the Original Material)e.g., organism from organism, cell from cell, isolate sub-culture from isolate).
- 1.4 **“Unmodified Derivatives”** means substances created by the RECIPIENT that constitute an unmodified functional subunit or product of the Original Material)e.g., sub-clones, purified or fractionated subsets, extracted DNA/RNA/protein).
- 1.5 **“Modifications”** means substances created by the RECIPIENT that contain or incorporate any form of the Materials)e.g., new constructs, cell fusions, sub-clones combined with other reagents).
- 1.6 **“Results”** means all data, findings, reports and other information first generated by the RECIPIENT through use of the Materials in the Research Programme, excluding the Materials themselves.

- 1.7 “Research Programme”** means the research activity described in Appendix B, for which the Materials are supplied.
- 1.8 “Researcher”** means the Principal Investigator named in the Parties table, and any co-workers under that person’s direct supervision bound by obligations no less strict than this Agreement.
- 1.9 “Third Party”** means any person or entity other than the PROVIDER and the RECIPIENT.
- 1.10 Confidential Information”** means the Materials, the Research Programme, and any non-public technical or scientific information disclosed by one Party to the other in connection with this Agreement.
- 1.11 “Applicable Law”** means all international, national and local statutes, regulations, permits, and ethical or regulatory approvals applicable to the Materials, the Research Programme, and their transport, receipt, storage, use, and disposal.

1. SUPPLY AND PURPOSE

- 1.1.** The PROVIDER shall supply the Materials described in Appendix A to the RECIPIENT for the sole purpose of the Research Programme described in Appendix B (the “Purpose”).
- 1.2.** The RECIPIENT shall not use the Materials for any purpose other than the Purpose without the PROVIDER’s prior written consent.
- 1.3.** The Materials are experimental in nature and shall not be administered to humans or animals, and shall not be used in clinical practice, unless Appendix B expressly authorizes such use and that use is supported by the regulatory and ethical approvals required under Section 3.

2. ETHICAL, REGULATORY AND BIOSAFETY COMPLIANCE

- 2.1. Human-derived materials.** Where the Materials are of human origin (e.g., blood, plasma, sera, isolates, extracted nucleic acids or other clinical specimens), the PROVIDER confirms that the underlying study holds valid ethics approval and that participant informed consent covers this transfer and the downstream use described in Appendix B. The relevant ethics approval reference is recorded in Appendix C.
- 2.2. Ethics and health-authority compliance.** Each Party shall comply with the requirements of the competent national ethics and health authorities in its own jurisdiction (including, where applicable, Cameroon’s National Ethics Committee for Research on Human Health and the Ministry of Public Health) and, where the transfer crosses borders, of the corresponding authorities in the other Party’s jurisdiction.
- 2.3. Genetic resources and benefit-sharing.** Where the Materials constitute genetic resources within the meaning of the Convention on Biological Diversity and the Nagoya Protocol on Access and Benefit-Sharing, the Parties shall obtain and retain evidence of Prior Informed Consent and Mutually Agreed Terms, and any related access permits, before the transfer proceeds. References to such permits are recorded in Appendix C.
- 2.4. Biosafety and biosecurity.** The RECIPIENT shall handle, store, and dispose of the Materials in accordance with its institutional biosafety and biosecurity procedures and any biosafety classification recorded in Appendix A.
- 2.5. Packaging and shipment.** The Materials shall be packaged, labelled, and shipped in accordance with the WHO Guidance on Regulations for the Transport of Infectious Substances and, where applicable, the IATA Dangerous Goods Regulations (including UN3373 “Biological Substance, Category B” requirements or such other classification as applies). Unless Appendix C states otherwise, the PROVIDER is responsible for obtaining any required export permit and the RECIPIENT is responsible for obtaining any required import permit, each at its own cost.

- 2.6. General compliance.** Each Party is responsible for identifying and obtaining, at its own cost, all permits, licenses, and approvals required of it under Applicable Law in connection with this Agreement and shall provide the other Party with reasonable evidence of these on request.

3. RESTRICTIONS ON USE

- 3.1.** The RECIPIENT shall use the Materials only for the Purpose and not for any commercial or profit-generating purpose, or in research subject to a consulting, licensing, or similar obligation to a Third Party, without the PROVIDER's prior written consent.
- 3.2.** The RECIPIENT shall not transfer, disclose, sell, lease, or otherwise provide the Materials, in whole or in part, to any Third Party without the PROVIDER's prior written consent, and shall refer any interested Third Party to the PROVIDER.
- 3.3.** The RECIPIENT shall ensure that access to the Materials is limited to the Researcher and co-workers under the Researcher's direct supervision, each bound by obligations no less strict than those in this Agreement.
- 3.4.** The RECIPIENT shall not, without the PROVIDER's prior written consent, sell, sequence for onward distribution, or otherwise characterize the Materials in a manner intended to identify their exact composition beyond what is reasonably necessary for the Purpose.

4. OWNERSHIP AND INTELLECTUAL PROPERTY

- 4.1.** The Materials, including the Original Material, any Progeny, any Unmodified Derivatives, and the Original Material contained in any Modifications, remain the property of the PROVIDER. Nothing in this Agreement transfers or licenses any intellectual property right of the PROVIDER except the limited right to use the Materials for the Purpose.
- 4.2.** Subject to Section 5.3, the RECIPIENT owns the Results. The RECIPIENT grants the PROVIDER a non-exclusive, royalty-free licence to use the Results for the PROVIDER's own internal, non-commercial research and teaching activities.
- 4.3.** If use of the Materials leads to an invention, discovery, or other patentable subject matter relating directly to the Materials themselves (as opposed to a Result obtained through their use), the RECIPIENT shall promptly notify the PROVIDER in writing, and the Parties shall negotiate in good faith regarding inventorship, ownership, and any related filing before either Party seeks patent or other proprietary protection.
- 4.4.** The RECIPIENT shall not seek to obtain any patent or other proprietary right over the Materials themselves or make any commercial use of an invention relating to the Materials, without the PROVIDER's prior written consent.

5. PUBLICATIONS AND ACKNOWLEDGMENT

- 5.1.** The RECIPIENT may publish Results, provided the PROVIDER is acknowledged as the source of the Materials, or named as a co-author where its contribution meets standard authorship criteria (e.g., the ICMJE criteria).

- 5.2. The RECIPIENT shall submit any proposed publication describing work carried out using the Materials to the PROVIDER at least thirty (30) days before submission for public disclosure. If the PROVIDER reasonably believes the publication contains patentable subject matter relating to the Materials, it may request a delay of up to sixty (60) additional days to allow it to seek protection; the RECIPIENT shall not unreasonably withhold agreement to such a request.
- 5.3. On reasonable request, and within a period of thirty (30) days, the RECIPIENT shall provide the PROVIDER with copies of resulting publications and a summary of the status of the Research Programme.

6. COSTS

- 6.1. Unless Appendix C states otherwise, the Materials are supplied free of charge, and the Party specified in Appendix C bears the reasonable costs of preparing, packaging, and shipping the Materials.

7. CONFIDENTIALITY

- 7.1. Each Party shall keep the other's Confidential Information confidential and use it only as permitted by this Agreement, for five (5) years from the date of disclosure, except information that: (a) was already known to the receiving Party without an obligation of confidentiality; (b) is or becomes publicly available through no fault of the receiving Party; (c) is independently developed without reference to the disclosing Party's Confidential Information; or (d) must be disclosed under Applicable Law, a court order, or a request from an ethics or regulatory authority, provided the receiving Party gives the disclosing Party reasonable notice where practicable.

8. WARRANTIES AND DISCLAIMER

- 8.1. The Materials are provided "as is" and are experimental in nature. Except as expressly stated in Appendix C, the PROVIDER makes no warranties of any kind, express or implied, including as to merchantability, fitness for a particular purpose, safety, viability, freedom from pathogens, or non-infringement of Third-Party rights.

9. LIABILITY AND INDEMNIFICATION

- 9.1. Except where directly caused by the PROVIDER's negligence or wilful misconduct, the PROVIDER shall have no liability for any loss, claim, or damage arising from the RECIPIENT's receipt, handling, storage, use, or disposal of the Materials.
- 9.2. The RECIPIENT shall indemnify and hold the PROVIDER harmless from any claims, damages, losses, or costs (including reasonable legal fees) arising out of the RECIPIENT's use of the Materials, except to the extent directly caused by the PROVIDER's negligence or wilful misconduct.
- 9.3. Nothing in this Agreement limits or excludes either Party's liability for death or personal injury caused by its negligence, for fraud, or for any other liability that cannot lawfully be limited or excluded.

10. DATA PROTECTION

- 10.1.** Where the Materials are accompanied by, or their use generates, personal or health-related data, each Party shall process that data only as necessary for the Research Programme, in compliance with Applicable Law on data protection, and with appropriate technical and organizational safeguards. Where a Party has a designated Data Protection Officer, matters under this Section shall be referred to that office before the transfer proceeds.

11. TERM, TERMINATION, AND RETURN OR DESTRUCTION OF MATERIALS

- 11.1.** This Agreement takes effect on the date of the last signature and continues for the period stated in Appendix C, or until completion of the Research Programme, whichever occurs first, unless extended by the Parties' prior written agreement. A request to extend shall be made at least three (3) months before expiry.
- 11.2.** Either Party may terminate this Agreement with immediate effect on written notice if the other Party commits a material breach that remains unremedied thirty (30) days after written notice of the breach.
- 11.3.** On termination or expiry, the RECIPIENT shall, at the PROVIDER's election, promptly return or destroy (and certify the destruction of) all unused Materials and any Modifications incorporating them, save that this obligation does not extend to Results retained under Section 5 or 6.
- 11.4.** Sections 1, 5, 6, 8, 9, 10, 11, 15, and 16 survive termination or expiry of this Agreement.

12. FORCE MAJEURE

- 12.1.** Neither Party is liable for any delay or failure to perform caused by circumstances beyond its reasonable control, provided it notifies the other Party promptly and resumes performance as soon as reasonably possible.

13. ASSIGNMENT

- 13.1.** Neither Party shall assign or transfer this Agreement, or any right or obligation under it, without the other Party's prior written consent, not to be unreasonably withheld.

14. GOVERNING LAW AND DISPUTE RESOLUTION

- 14.1.** This Agreement is governed by the laws of the Republic of Cameroon unless Appendix C records that the Parties have agreed on another jurisdiction for a specific transfer.
- 14.2.** The Parties shall first attempt in good faith to resolve any dispute arising out of or in connection with this Agreement through negotiation between their authorized representatives. If unresolved within thirty (30) days, the dispute shall be referred to arbitration under the OHADA Uniform Act on Arbitration, or such other arbitral rules as the Parties agree in Appendix C, with the seat and language of arbitration as stated in Appendix C.

15. GENERAL PROVISIONS

- 15.1. Entire agreement.** This Agreement, including its Appendices, constitutes the entire agreement between the Parties regarding its subject matter and supersedes all prior discussions on that subject.
- 15.2. Notices.** Notices under this Agreement shall be in writing and delivered to the contact persons named in the Parties table, by hand, courier, or email with confirmation of receipt.
- 15.3. Amendment.** No variation of this Agreement is effective unless made in writing and signed by an authorized representative of each Party.
- 15.4. Severability.** If any provision of this Agreement is held invalid or unenforceable, the remaining provisions continue in full force.
- 15.5. No waiver.** A failure or delay by either Party in exercising a right under this Agreement does not operate as a waiver of that right.
- 15.6. No agency or partnership.** Nothing in this Agreement creates any partnership, joint venture, or agency relationship between the Parties.
- 15.7. Counterparts.** This Agreement may be executed in counterparts, including electronically, each of which is an original, and together constitute one instrument.
- 15.8. Language.** This Agreement is executed in English. Where a French-language version is required for a Party's internal purposes, the English text prevails in the event of any inconsistency, unless Appendix C states otherwise.

AGREED by the Parties through their authorized signatories:

For and on behalf of the PROVIDER	For and on behalf of the RECIPIENT	Acknowledged by the Researcher (not a party)
Signed:	Signed:	Signed:
Print name:	Print name:	Print name:
Title:	Title:	Title:
Date:	Date:	Date:

APPENDIX A DESCRIPTION OF MATERIALS

Item #	Material description / strain, isolate or batch ID	Quantity / volume	Storage & handling conditions	Biosafety / hazard classification

APPENDIX B RESEARCH PROGRAMME

Protocol / study title

Ethics approval reference and date (attach or cross-reference)

Funder(s), if applicable

Study site(s) / country/countries

Summary of the intended use of the Materials

Confirmation of human/clinical use, if any (Section 2.3)

APPENDIX C TRANSFER-SPECIFIC TERMS

Governing law and arbitration seat/language, if other than Section 15.1/15.2 default

Cost / fee arrangement, if other than Section 7.1 default

Ownership of Results, if other than Section 5.2 default

Ethics approval reference relied on for Section 3.1 (human-derived Materials)

Access and Benefit-Sharing / Nagoya Protocol permit reference, if applicable (Section 3.3)

Export permit reference)PROVIDER) and import permit reference (RECIPIENT), if applicable

Term of this Agreement (months/years) (Section 12.1)

Any additional terms specific to this transfer
